

15th September 2023

External Wall Systems – Updates on Fire Safety Remediation, Surveys and Government guidance

Please find below an update on progress and next steps in relation to the Fire Risk Appraisal of External Walls (FRAEW) and associated cladding remediation.

The board have provided several different updates for blocks within GMV West over the last couple of years. The intention of this update is to consolidate this and provide an indication on next steps where applicable.

Most recently, Ashton Fire were commissioned by GMV Management Ltd (GMVML) to assist with the review and provision of recommendations following a series of desktop and intrusive surveys of external wall materials and construction quality at GMV West.

GMV West Houses – Cottrell Court Houses, Edison Court Houses, Kilby Court Houses, Osier Lane and Moseley Row

The review by Ashton Fire included the dwelling houses mentioned above. Following this review with reference to the Royal Institution of Chartered Surveyors (RICS) Guidance Note "Valuation of Properties in Multi-Storey, Multi-Occupancy Residential Buildings with Cladding" (1st Edition, March 2021), it is their recommendation that an **EWS1 form should not be required for the dwelling houses.**

The intention of the guidance note is "to help valuers understand when an EWS1 form is required due to visible cladding and it is likely, under current government guidance, that remedial works affecting the value of the property would be needed to remedy any defects with that cladding." We have also had confirmation that PAS 9980 does not apply and that the dwelling houses at GMV West are not expected to require a completed EWS1 Form.

No further action is required for the dwelling houses and a letter to this effect has been issued by the board that should facilitate re-mortgages and sales.

GMV West Low Rise (below 11m) – Cottrell Court Apartments, Edison Court Apartments and Kilby Court Apartments

The review by Ashton Fire included the low-rise apartments mentioned above. Following this review with reference to the Royal Institution of Chartered Surveyors (RICS) Guidance Note "Valuation of Properties in Multi-Storey, Multi-Occupancy Residential Buildings with Cladding" (1st Edition, March 2021) and the Building Safety Act, it is their recommendation that an **EWS1 form should be produced for the low-rise apartments (although not strictly required).**

Intrusive testing is complete to progress a Fire Risk Appraisal of External Walls (FRAEW) according to PAS9980 for the low-rise blocks. The principal recommendation in these reports was to install LD2 alarm systems in the apartments. A section 20 consultation was launched to carry this out across

59 apartments and the works are complete except for four apartments where access hasn't been possible despite multiple chasers and escalations. We will continue to chase this until it is complete. Ashton Fire have now been instructed to progress the production of EWS1 for the low rise blocks and have committed to produce these by October. The board will communicate the outcome of these EWS1 forms and any next steps as soon as possible.

As per the update on dwelling houses once the EWS1 reports are received no further action should be required for the low-rise apartments. RICS guidelines already allow for valuations, but this should further facilitate re-mortgages and sales.

GMV West High Rise (above 18m) – Alamaro Lodge, Becquerel Court, Da Vinci Lodge, Faraday Lodge, Farnsworth Court, Holly Court, Maurer Court, Metcalfe Court, New Becquerel Court and Newton Lodge

The review by Ashton Fire included the high-rise apartments mentioned above. Following this review with reference to the Royal Institution of Chartered Surveyors (RICS) Guidance Note "Valuation of Properties in Multi-Storey, Multi-Occupancy Residential Buildings with Cladding" (1st Edition, March 2021) and the Building Safety Act, it is their recommendation that an **EWS1 form should be produced for the high-rise apartments.**

As previously advised in the Board update on 3 July 2023, the Department for Levelling Up, Housing & Communities confirmed that the applications by GMVML for funds to remediate External Walls on high rise blocks have formally transferred from the Building Safety Fund (BSF) to the Developer (GMVL) under the Developer Remediation Contract and the Developer will now cover all life critical fire safety defects.

Intrusive testing is complete to progress a Fire Risk Appraisal of External Walls (FRAEW) according to PAS9980 for the high-rise blocks. Ashton Fire have to date delivered early drafts for five of the 10 blocks. We have provided feedback on these reports and continue to chase all outstanding reports. All reports were initially due by the end of August. Following this the developer will be able to confirm the scope of their works and confirm a timeline for the remediation. Ashton fire have had staffing challenges that have impacted this timeline and have now committed to get the reports to the board by the end of October and we aim to review and release by the end of November. The board of GMVML is engaged with Ashton Fire to ensure that all outstanding PAS9980 reports are delivered as quickly as possible.

Our original remediation plan when we were working towards BSF funding entailed a two-year programme. The government has asked developers to commit to this and we will continue to pursue remediation that is timely, retains the quality of original materials, addresses all fire risks, makes our homes saleable and most importantly does not place the cost burden for remediation on leaseholders.

Ashton Fire have been instructed to progress the production of EWS1 for the high-rise blocks and will deliver these following the remediation. The board have in addition asked Ashton to produce interim PAS 9980 reports that capture the current ratings, these will facilitate mortgages and sales when requested by lenders.

All leaseholders impacted by the cladding crisis have been continually frustrated by the slow pace of progress over the last few years. This has not been helped by constantly evolving legislation and

the move from the BSF to developers. Hopefully now that the legislation has firmed up and developers have accepted responsibility, we will have a speedy resolution.

We will continue to commission regular fire risk assessment for the wider estate and monitor any upcoming changes to the fire safety legislation.

There is a lot of information here to digest so if you have any queries or specific challenges with a mortgage, please raise this with the village manager (village.manager@gmvservices.co.uk) or the property manager Greta (greta.nicyte@rendallandrittner.co.uk) in the first instance.

Board of GMV Management Ltd